

§ 304.2. Temporary order of protection. (1) Upon application by the presentment agency, the court may issue a temporary order of protection against a respondent for good cause shown, ex parte or upon notice, at any time after a juvenile is taken into custody, pursuant to section 305.1 or 305.2 or upon the issuance of an appearance ticket pursuant to section 307.1 or upon the filing of a petition pursuant to section 310.1.

(2) A temporary order of protection may contain any of the provisions authorized on the making of an order of protection under section 352.3.

(3) A temporary order of protection is not a finding of wrongdoing.

(4) A temporary order of protection issued or extended after the filing of a petition under this article shall contain an expiration date and may remain in effect until an order of disposition is entered.

a. A temporary order of protection issued prior to the filing of a petition under this article may remain in effect for an initial period of up to thirty days and may be extended by the court for an additional period of up to thirty days upon good cause or, where the juvenile's case is being adjusted pursuant to section 308.1 of this article, for a period coinciding with such adjustment. If the juvenile successfully completes adjustment prior to the expiration of the order, the probation service, presentment agency or attorney for the child may move to vacate such temporary order of protection upon such successful completion.

b. A temporary order of protection issued under this section may be extended for one additional period of up to thirty days upon a finding by the court of a compelling reason. Where the case is not being adjusted or where efforts to adjust the case have been terminated unsuccessfully, the court must also determine whether the presentment agency has made diligent efforts to file the petition and the reasons for any delay.

c. Any application for an extension of a temporary order of protection under this section shall be on notice to the juvenile, who shall have an opportunity to be heard and shall have a right to counsel pursuant to section two hundred forty-nine of this act.

